

Violence Against Women Act is SUSTAINED without leave to amend.

Title VI Discrimination Is Not Sufficiently Pled

To state a claim under Title VI, a plaintiff must allege the defendant entity is engaged in prohibited discrimination and is involved in receiving federal financial assistance. (See *Joseph v. Boise State Univ.*, (D. Idaho 2024) 998 F.Supp.2d 928, 944.) Defendants argue that Plaintiff has failed to plead any facts showing that they intentionally discriminated against her based on any protected characteristics. (Demurrer, p. 11.) Plaintiff asserts that the discrimination is satisfactorily alleged, in that she alleged that Hampton told her that she had “no legal counsel” for Plaintiff and abruptly terminated a phone call during Plaintiff’s issue conference on August 9, 2024, and that Defendants “complete failure to provide services promised in the retainer agreement, combined with affirmative misrepresentations about attending court proceedings, demonstrates treatment that falls below the standard BayLegal provides to other clients.” (Complaint, p. 35.)

The Court agrees with Defendants that the allegations Plaintiff has asserted do not show discrimination on the part of Defendants.

In light of this, Defendants’ demurrer to Plaintiff’s cause of action for Title VI Discrimination is SUSTAINED with leave to amend.

Ruling on the Demurrer

The Court **SUSTAINS** Defendants’ demurrer to the cause of action asserting a Violence Against Women Act claim without leave to amend. The Court **SUSTAINS** Defendants’ demurrer to the remaining causes of action with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

11. 9:00 AM CASE NUMBER: C25-02836
CASE NAME: MOFOLUSO OLALEMI AND FAMILY VS. BAY AREA LEGAL AID CONTRA COSTA COUNTY
REGIONAL OFFICE
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: MOFOLUSO OLALEMI AND FAMILY
TENTATIVE RULING:

This motion is denied as moot as Defendants’ demurrer is SUSTAINED in full. See Line 10 above.

12. 9:00 AM CASE NUMBER: C25-03644
CASE NAME: RENITA WILSON VS. RICHMOND HOUSING AUTHORITY
*HEARING ON MOTION IN RE: JUDICIAL PREFERENCE
FILED BY: WILSON, RENITA
TENTATIVE RULING:

Case is settled and motion was withdrawn by the moving party.

13. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Hearing **continued** by the Court to August 14, 2026 in Department 32.

14. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT
FILED BY: PAULK, TYISHA
TENTATIVE RULING:

This is a collection action. Plaintiff filed a complaint against Defendant on May 7, 2024 and default judgment was entered on February 5, 2025. Defendant filed the instant motion to set aside default and default judgment on February 27, 2026. Defendant argues that she was never served with the complaint and the default and default judgment are void as a result.

There was no timely opposition filed to the motion to set aside default, and accordingly, Plaintiff is deemed to have conceded Defendant's arguments. (The Court notes that a late opposition was submitted, though it is not clear that it was served on Plaintiff.) The failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566 (“By failing to argue the contrary, plaintiffs concede this issue.”); *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 (“failure to address the threshold question...effectively concedes that issue and renders its remaining arguments moot”); *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 (issue is impliedly conceded by failing to address it).)